

Line 4

Case Name: *American Express National Bank v. Timmy Tri, et al.*

Case No.: 24CV447115

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Plaintiff American Express National Bank (“Plaintiff”) moves under Section 437c of the Code of Civil Procedure for summary judgment in favor of Plaintiff and against Defendant Timmy Tri (“Defendant”) on the grounds that Defendant has no defense to the Complaint filed by Plaintiff. Notice of Motion (the “Motion”) at 1:23-2:1 (filed: Dec. 18, 2025). In the alternative, Plaintiff moves for Summary Adjudication in favor of Plaintiff and against Defendant on the First Cause of Action for Breach of Contract as evidenced by the Cardmember Agreement and billing statements kept by Plaintiff that constitute the principal record of transactions between Plaintiff and Defendant relative to Defendant’s credit card account. *Id.* at 2:7-10.

The Motion came on for hearing on August 26, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, including all the evidence and separate statements and authorities submitted by each party, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

The evidence is undisputed that:

- a binding contract exists between these parties evidenced by the issuance of a credit card account by Plaintiff to Defendant,
- Defendant used this credit card to purchase items, and
- Defendant breached this contract by failing to pay Plaintiff for amounts that Defendant charged on this credit card.

Specifically, the following facts and evidence submitted by Plaintiff are undisputed:

1. Defendant applied to Plaintiff for a credit card account and entered into a written credit card account agreement with Plaintiff for the account number ending in 3003 (the “Account”). Pl. Declaration in Support of Motion (“Pl. Decl.”) at ¶¶ 7, 9 & Ex. A thereto.
2. Defendant agreed to be bound by the terms and conditions set forth in the Cardmember Agreement when the Defendant applied for, received or used the credit card account. In addition, the Cardmember Agreement provides that use

of the card constitutes acceptance of the agreement. Pl. Decl. at ¶ 4, 7 & Exs. A, B, and C.

3. After receiving the credit card, Defendant made purchases using the credit card; the principal balance of \$7,834.88 results and exists now from Defendant's use of this account. Pl. Decl. at ¶¶11, 15 & Ex. A, B, C, and D.
4. Defendant defaulted by not making payments due under the terms of the Cardmember Agreement; so Plaintiff accelerated the account balance so that the entire unpaid balance became immediately due and payable. Pl. Decl. at P¶15 & Ex. A, B, and C.
5. Defendant owes Plaintiff the principal sum of \$7,834.88, plus court costs in the amount of \$797.61, for a total amount owed to Plaintiff now of \$8,632.49. Pl. Decl. at ¶ 15 & Ex. B and C.

Defendant has submitted no evidence whatever disputing any of those facts.

Defendant does not even *argue* otherwise.

Indeed, Defendant has not opposed the Motion at all, which the Court views as Defendant conceding the Motion in its entirety. *D.I. Chadbourne, Inc. v. Super. Ct.* (1964) 60 Cal.2d 723, 728, fn. 4.; California Practice Guide: Civil Procedure Before Trial ¶ 9:105.10, Ch. 9 at pp. 94-95 (failure to file opposition papers to motion is treated "as an admission that the motion is meritorious") (Weil & Brown, The Rutter Group, 2025 Ed.); see also Rule of Court 8.54(c): "A failure to oppose a motion may be deemed a consent to the granting of the motion." CRC Rule 8.54(c).

Accordingly, the Plaintiff's Motion for Summary Judgment in favor of Plaintiff and against Defendant is **GRANTED** in its entirety. Specifically, the Court **ORDERS** that Plaintiff American Express National shall recover now from Defendant Timmy Tri the principal sum of \$7,834.88, plus court costs in the amount of \$797.61, for a total judgment in the sum of \$8,632.49.²

SO ORDERED.

Date: August 26, 2026

Vincent I. Parrett
Judge of the Superior Court of California,
County of Santa Clara

² Today the Court will also sign, date, and file the separate [proposed] "Judgment Pursuant to Motion for Summary Judgment" that was filed by Plaintiff with this Motion.

Line 5

Case Name: *Shaun Allen Laliberte, et al. v. F.S. Trucking Company, et al.*

Case No.: 25CV472081

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Plaintiff Shaun Allen Laliberte (“Plaintiff”) moves under Code of Civil Procedure Sections 2023.010 *et seq.*, 2033.010 *et seq.*, 2023.030 *et seq.*, and 2033.280 *et seq.* to deem Plaintiff’s Requests for Admissions, Set One (the “RFAs”) admitted by Defendant F.S. Trucking Company, Inc., and for sanctions for Plaintiff’s reasonable attorneys’ fees and costs for this Motion to be imposed in the amount of \$2,000.00 against Defendant F.S. Trucking Company, Inc. Notice of Motion (the “Motion”) at 2:4-16 (filed: Feb. 19, 2026). In the alternative to a ruling that Defendant has admitted the RFAs, Plaintiff requests a ruling that because Defendant failed to serve a timely responses to these RFAs Defendant has waived any objections to these RFAs. Motion at 5:1-8

The Motion came on for hearing on August 26, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

I. Background Facts & Chronology

Plaintiff served the Requests for Admissions, Set One, on Defendant F.S. Trucking Company, Inc., on November 25, 2025. Declaration of attorney Anahi Gonzalez In Support of Motion (“Gonzalez Decl.”) at ¶ 5 & Exhibit A thereto.

Defendant’s responses were due on December 29, 2025. Gonzales Decl. ¶ 6. This timing point is important here: under Code of Civil Procedure Section 2033.250, “[w]ithin 30 days after serve of requests for admission, the party to whom the requests are directed shall serve the original of the response to them on the requested party[.]” C.C.P. § 2033.250(a). So here if Defendant failed to serve a response to these RFAs by December 29, 2025, then Defendant would have failed to serve a *timely* response to these RFAs.

Plaintiff filed this Motion on February 19, 2026. Plaintiff asserts that as February 19, 2026 when Plaintiff filed this motion that Defendant F.S. Trucking Company, Inc., did not respond to these RFAs despite its obligation to respond under Code of Civil Procedure Section 2033.240. Gonzalez Decl. at ¶ 7.

Because Defendant failed to serve a timely response to these RFAs by December 29, 2025, Plaintiff moves for an Order under Code of Civil Procedure Section 2033.280 deeming admitted by Defendant the truth of all matters specified in Plaintiff’s Requests for Admissions, Set One. C.C.P. 2033.280 (b). Motion at 3:21-4:24.